



CHAPTER xxxiii.

An Act for the regulation of certain roads on the Dagenham Trading Estate and for other purposes. A.D. 1932.
[16th June 1932.]

WHEREAS Ford Motor Company Limited (hereinafter referred to as "the Company") are a company limited by shares and were incorporated under the provisions of the Companies Acts 1908 to 1917 on the seventh day of December one thousand nine hundred and twenty-eight :

And whereas the Company have acquired certain lands situate partly in the urban district of Dagenham and partly in the urban district of Hornchurch in the county of Essex known as the Dagenham Trading Estate and have thereon constructed extensive works for the mass production of motor vehicles and other products intended for sale in the United Kingdom and for export to countries in Europe and the Near East :

And whereas extensions of and additions to the said works of the Company are now in progress :

And whereas the Dagenham Trading Estate is specially adapted for the erection of works manufactories and warehouses and so much thereof as is not required for the purposes of or connected with the Company's manufacturing operations is in course of being laid out and developed as an industrial estate for the accommodation of allied and other trades and industries :

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And whereas it is expedient that the works manufacturing and warehouses on the said estate should have available direct means of access and communication both by rail and by road :

And whereas lines of rails have been constructed on the said estate and such lines of rails have been laid out so as to run along and cross on the level roads on the said estate which are vested in the Company and have not been dedicated to the public :

And whereas in order to utilise and develop the said estate to its full capacity and to the best advantage to traders manufacturers and others the construction of further lines of rails will from time to time become necessary :

And whereas in view of the exceptional circumstances of the said estate and of the extent and nature of the business and operations of the Company and their present and prospective grantees lessees and tenants and of the trade requirements thereby involved it is expedient and would be of public and local advantage that such provisions should be enacted as are in this Act contained for the regulation of the roads on the said estate and that such provisions should have effect notwithstanding the dedication to the public or the adoption by the local or road authorities of such roads or any of them :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Dagenham Trading Estate Act 1932.

Interpretation.

2. In this Act unless the context otherwise requires the expressions—

“The Company” means Ford Motor Company Limited and includes the successors or assigns of Ford Motor Company Limited as owners

4. Nothing in this Act shall be construed or deemed to impose upon any local authority an obligation to accept the dedication of any road or to declare any road to be a highway repairable by the inhabitants at large. A.D. 1932.
 —
 As to dedication of roads.

5. For the protection of the urban district council of Dagenham and of the urban district council of Hornchurch (each of which in relation to its urban district is in this section referred to as "the council") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Company and the council apply and have effect with respect to so much of the trading estate as is situate in the urban district of the council (that is to say) :— For protection of Dagenham Urban District Council and Hornchurch Urban District Council.

(1) Nothing in this Act shall be deemed to derogate from the powers conferred on the council by section 19 of the Public Health Acts Amendment Act 1907 :

(2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as the same are applicable and are not inconsistent with the provisions of the next following subsection of this section apply to the breaking up of such estate roads as are for the time being highways for the purpose of the construction laying alteration renewal and repair of all bridges and lines of rails under the authority of this Act :

(3) No bridges or lines of rails shall be constructed laid altered renewed repaired or maintained in over along or across any estate road which is for the time being a highway otherwise than subject to the following conditions and to such further reasonable conditions (if any) as the council may think necessary for securing the safety of the public and the use and maintenance of such estate road for vehicular and other traffic (namely) :—

(a) Without prejudice to the further provisions hereafter in this subsection contained no lines of rails shall be laid constructed altered renewed used or maintained along any footway or so as to leave a clear carriageway

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or clear carriageways of less width or widths than such as shall be reasonably approved by the council nor shall any bridges be constructed altered renewed used or maintained so as to leave a clear consecutive space measured from the surface of the road above such surface at every part thereof of less height than such as shall be reasonably approved by the council;

(b) All rails shall be so laid and maintained that where they cross the carriageway or footway or are laid along the carriageway of any such estate road the upper surface thereof shall be upon a level with the surface of such carriageway or footway;

(c) Before any bridges or rails are constructed laid altered or renewed in over along or across any such estate road the person proposing to construct lay alter or renew any such bridges or rails (in this section referred to as "the operators") shall except in case of emergency and then so soon as is possible after the beginning of the work or the necessity for the same has arisen submit to the council a plan showing the proposed position and method of construction laying alteration or renewal of such bridges or rails;

(d) The council shall within twenty-eight days after the receipt of such plan by them notify in writing to the operators their consent or their objection to the construction laying alteration or renewal of the bridges or rails in the manner shown on such plan or the conditions on which they will consent to the construction laying alteration or renewal of the same but such consent shall not be unreasonably withheld;

(e) If within the said period of twenty-eight days the council shall not have given such notice in writing they shall be deemed to have consented to the construction laying alteration or renewal of the bridges or rails in the manner shown on such plan;

of the trading estate or of such portion thereof as may not have been disposed of in parcels; A.D. 1932.
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“The trading estate” means the lands belonging to Ford Motor Company Limited and known as the Dagenham Trading Estate containing in all four hundred and ninety-nine acres or thereabouts situate partly in the urban district of Dagenham and partly in the urban district of Hornchurch in the county of Essex;

“Estate road” means any road or street already laid out or hereafter to be laid out by the Company on the trading estate.

3. Notwithstanding anything contained in any public Act having force in or in any local Act relating to the urban districts of Dagenham and Hornchurch or either of them or in any byelaws made by any authority having jurisdiction in those districts or either of them (in this section referred to as “the authority”) or the dedication of any estate road as a public highway or the adoption thereof by any public authority the following provisions shall apply and have effect in respect of estate roads on the trading estate (that is to say):—

As to
estate roads
on the
trading
estate.

(1) The Company and (subject to the terms of his grant) any person to whom the Company has granted or shall grant a right so to do shall have power at all times to construct use maintain and renew in over along or across any such estate road—

(a) any bridges; and

(b) any line or lines of rails for the conveyance of waggons or carriages moved by any description of motive power for the purpose of communicating between premises on the trading estate and any railway or waterway within or communicating with the trading estate;

and for all or any of the purposes aforesaid to open and break up any such estate road:

Provided that nothing in this section shall authorise the Company or any such person as aforesaid to interfere with or affect any easement wayleave right liberty or privilege which before the passing of this Act has been granted or created by the Company or their predecessors

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in title Provided further that in the event of any waggon or carriage conveyed on any line of rails constructed used or maintained under this Act being moved by electricity the Company shall take all reasonable precautions to prevent any interference whether by induction or otherwise with any telegraphic line (as defined by the Telegraph Act 1878) from time to time erected laid down or used by the Postmaster-General or with telegraphic communication by means of any such line :

- (2) If the authority put in force in respect of any estate road the provisions of sections 150 or 152 of the Public Health Act 1875 or of the Private Street Works Act 1892 or of any Act amending or re-enacting the same they shall not make any requirement which is not reasonably necessary for a road used for industrial purposes and the byelaws of the authority shall not be deemed to prevent the laying out and construction of estate roads in such manner as may be necessary for a road used for industrial purposes Provided that in the event of any dispute or difference arising as to the reasonableness of any such requirement the same shall be determined by an arbitrator to be appointed (failing agreement) by the Minister of Transport on the application of either party :

Provided also that the provisions of this subsection shall not apply to such part of the trading estate as is for the time being used or allocated for residential purposes :

- (3) The byelaws of the authority prescribing the width of any new street shall not be deemed to prevent the laying out of any estate road in two carriageways separated by lines of rails although any such proposed carriageway with the adjoining footway may be of less width than the width prescribed for a new street by any such byelaws :
- (4) Any powers of the authority to alter the width of carriageways and footpaths on an estate road shall only be exercised in a manner consistent with the convenient use of such road for industrial purposes.

(f) No bridges or rails shall be constructed laid altered or renewed except in case of emergency before the expiration of the said period of twenty-eight days unless the council shall have notified their consent as aforesaid nor shall any bridges or rails in respect of which the council shall have notified as aforesaid any objections or conditions be constructed laid altered or renewed after the expiration of the said period of twenty-eight days until any difference between the operators and the council as to such objections or conditions shall have been determined by arbitration as hereinafter provided; A.D. 1932.
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(g) No engine railway waggon railway carriage or other similar vehicle shall be allowed to remain at rest for more than five minutes at one time on any part of any line of rails where situate in the carriageway or crossing the carriageway or footway of any such estate road. If any person acts in contravention of this paragraph he shall be liable on summary conviction to a penalty not exceeding forty shillings in respect of the first offence and five pounds in respect of any subsequent offence;

(h) The owner of any rails shall at all times pave on each side of every rail laid along the carriageway or across the carriageway or footway of any such estate road for a distance of not less than twelve inches and maintain and keep such paving in good repair and condition to the reasonable satisfaction of the council;

(i) Where any line of rails shall be constructed across the carriageway or footway of any such estate road or any part thereof which shall not at the time of such construction be paved the owner of such rails shall pave the space between the rails and for a distance of not less than one yard on each side of such line of rails and shall so long as such estate road or part thereof shall continue to be unpaved maintain and keep such paving in good repair and condition to the reasonable satisfaction of the council;

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(j) If any such bridges or rails constructed or laid in over along or across any such estate road or any paving referred to in paragraphs (h) or (i) of this subsection be not kept in repair to the reasonable satisfaction of the council the council may give notice in writing to the owner of such bridges or rails requiring him to execute within a reasonable time to be specified in the notice such repairs as may be reasonably necessary and if the repairs are not so executed the council may execute the repairs and recover the expenses summarily as a civil debt from the owner. If any expenses recoverable from the owner under this paragraph are not paid to the council within one month after demand in writing the council may without any previous notice to the owner (and without prejudice to the right of the council to recover the said expenses or any part thereof summarily as a civil debt from the owner) remove the bridges or rails in respect of which the owner has failed to pay any such expenses as aforesaid and sell and dispose of the materials of the same either by public auction or private sale and for such sum and to such person as the council may think fit and may out of the proceeds of such sale pay and reimburse themselves the amount of the said expenses and of the cost of removal and of the sale and the balance (if any) of the proceeds of sale shall be paid over by the council to the owner :

- (4) Before commencing the work of constructing laying altering or renewing any bridges or rails in respect of which a plan has not been submitted under paragraph (c) of subsection (3) of this section which work may affect or interfere with any sewers belonging to the council or any drains connected therewith the operators shall submit to the council a plan showing the proposed position and method of construction of such bridges or rails and the provisions contained in the immediately preceding subsection of this section with regard to the consent of the council the time within

which the execution of the works may be commenced the notification of objections or conditions and the determination of differences shall apply thereto with such modifications as may be necessary : A.D. 1932.
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- (5) Every engine or other similar means used for moving waggons or carriages on any line of rails laid along or across any estate road which is for the time being a highway shall carry a bell or other instrument for giving audible and sufficient warning of its approach and the owner of such engine or other means shall take such other precautions (if any) as may be reasonably necessary in the interests of the safety of passengers or vehicles using such estate road :
- (6) If application is made to the council to declare any estate road to be a highway repairable by the inhabitants at large the council before making such declaration may resolve to execute with respect to such road further private street works subject to and in pursuance of the provisions of the Private Street Works Act 1892 not confined to works reasonably necessary for a road used for industrial purposes :
- (7) The provisions of subsection (2) of the section of this Act of which the marginal note is " As to estate roads on the trading estate " shall only apply to the urban district of the council subject to the following proviso namely Provided also that if it shall appear to the council that any estate road should be sewered levelled paved metalled flagged channelled made good or lighted otherwise than in such manner as may be necessary for a road used for industrial purposes the council may subject to and in pursuance of the provisions of the Private Street Works Act 1892 or any public general Act amending the same execute any works which could lawfully be executed by them under those provisions and apportion charge and recover the expenses accordingly and if it shall appear to the council that any

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estate road should be laid out or constructed otherwise than in such manner as may be necessary for a road used for industrial purposes the council may make any reasonable requirement which could lawfully be made under the byelaws for the time being in force and which is reasonably necessary having regard to all the circumstances Provided that nothing in this subsection shall extend to enable the council to remove or require the removal of any line or lines of rails or bridges or prevent the user of the same :

- (8) Subsection (3) of the section of this Act of which the marginal note is "As to estate roads on the trading estate" shall only apply to the urban district of the council subject to the following provisos namely Provided that each of the two carriageways shall not except with the written consent of the council be of less width than seventeen feet and each such carriageway shall have in addition at least one footway the width of which shall not except with the like consent be less than six feet Provided also that upon such estate road becoming repairable by the inhabitants at large the owner of the lines of rails shall pave each carriageway for a distance of not less than twelve inches on the side nearest to such lines of rails and thereafter maintain and keep such paving in good repair and condition to the reasonable satisfaction of the council :
- (9) Nothing in subsection (4) of the section of this Act of which the marginal note is "As to estate roads on the trading estate" shall be deemed to derogate from the powers conferred on the council by section 35 of the Public Health Act 1925 :
- (10) The expression "pave" where used in subsections (3) and (8) of this section means pave with any material reasonably approved by the council :
- (11) In the event of any difference or dispute arising under this section between the council

and the Company or the operators or the owners of any bridges or rails or as to whether any consent or approval is unreasonably withheld or as to the reasonableness of any objection condition or requirement or otherwise in respect of any of the provisions of this section the same shall be determined by an arbitrator to be appointed by the Minister of Transport on the application of either party after notice in writing to the other : A.D. 1932.

(12) Nothing in this Act relating to the determination of any difference or dispute by arbitration shall apply to any difference or dispute which a court of summary jurisdiction has power to determine under the Private Street Works Act 1892 :

(13) A notice under this section may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served.

6. Nothing in this Act or done thereunder shall extend to prejudice diminish alter or take away any of the rights powers or authorities vested or to be vested in the commissioners of sewers for the levels of Havering and Dagenham Ripple Barking East Ham Leyton and Walthamstow in the county of Essex or in any catchment board or drainage board to whom all or any of the rights powers duties obligations and liabilities of those commissioners may be transferred under the Land Drainage Act 1930. For protection of commissioners of sewers.

7. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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